



A COMMUNITY OF CHOICE

Planning and Development Department

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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council

From: Jeanie Vetter, PLA, Parks, and Greenway Planner

Subject: Memorandum of Understanding between WJE LLC., The City of Cheyenne and the Saddle Ridge Master Homeowners Association, Inc.

Date: October 4, 2023

Background:

The purpose of this MOU is for the city to accept ownership of Lot 11, Block 3, Saddle Ridge 16th Filing and Tracts 1, 2 and 3 of Saddle Ridge 18th Filing and to outline the design, construction, and maintenance responsibilities for these areas.

The Developer, WJE LLC., would like to donate Lot 11, Block 2 of the Saddle Ridge 16th Filing along with Tracts 1, 2, and 3 of Saddle Ridge 18th Filing. The Developer has created an HOA, Saddle Ridge Master Homeowners Association, Inc. to provide all maintenance of these properties and the city will maintain the Greenway segments as set forth in the MOU. If the city accepts the donations, the Developer will construct the final segment of Greenway coming out of this Development on to Pershing Blvd and connecting into the existing Greenway located on the west side of Christensen Road. (See Exhibit A). This represents approximately 1,875 feet of 10-foot width concrete path with an estimated total cost of \$146,000.00. The city will then reimburse the Developer all Community Facility Fees collected from both the 16th and 18th Filings. This represents 189 lots at \$400.00 per dwelling unit or a total of \$75,600.

The Developer has already completed the Greenway segments from Three Hearts Trail, south to Pershing and then the segment along E. Pershing Blvd east to the existing Greenway along Christensen.

It is understood that this agreement for acceptance of land is made based on historical agreements made for previous filings of the Saddle Ridge development in which previous staff accepted or were possibly expected by Council to accept these parcels. Over the years, the donations from the whole of Saddle Ridge, (approximately 353 acres in total size) to include the proposed donations of Tracts 1, 2 and 3, equal 38.91 acres of land. By comparison, the donations from the whole of The Pointe, (approximately 304 acres in total size) equal 20.57 acres of land. City Staff has concerns regarding future obligations for accepting these donations which include the following:

1. It is common in the City of Cheyenne to see homeowners' associations go defunct, resulting in detention ponds being purchased at tax sales and new owners wanting to develop these (South Park Estates) or residents expecting the city to purchase and maintain detention ponds that are no longer maintained by an HOA that has gone defunct. (Highland Village)

2. It is the staff's opinion that the city should not accept donations of local detention ponds as these are built to detain runoff for a particular development and not the region. Local detention ponds should be owned and maintained by Developers or their HOA's and easements should be placed on these so that these properties are not purchased in the future at tax sales with purchasers that are determined to develop them. (South Park Estates). We will be accepting donations of two local detention areas in this MOU.
3. The Greater Cheyenne Greenway is a regional transportation alternative and recreational system that is intended to safely connect neighborhoods to each other and to businesses, schools, and parks. It is appropriate for the Greenway to run by or through a residential development to connect it to other residential developments, parks, schools, and businesses but not to roll in and around the development. This, in staff opinion, is a benefit to the residents of Saddle Ridge specifically and not so for the whole of the city. For comparison's sake, The Pointe, a 304-acre neighborhood has 1.4 miles of Greenway and Saddle Ridge, a 353-acre neighborhood will have 3.4 miles of Greenway upon final construction.
4. Developer proposed park land should only be accepted based on the requirements set forth in the most current addition of the City's Parks and Recreation Master Plan and Cheyenne Unified Development Code. Minimum requirements include, but are not limited to, a minimum of 50% of the park site being usable for typical recreation facilities, such as sport fields and courts, playgrounds, and other facilities. Of this 50%, the property should have an average slope of 1-5% and all proposed park amenities must accommodate persons with disabilities. According to staff calculations, all areas within Tracts 1,2 or 3 represent a minimum grade of 12.5% to up to 50% slope and do not meet these requirements. The existing Saddle Ridge Park meets these requirements and is a great amenity for the neighborhood.
5. Staff believes that the donation of Lot 11, Block 2 of the Saddle Ridge 16th Filing, that serves as property used specifically for the Greenway connection to Christensen is important for the city to own or to obtain easement on.

This is a lot to think about when considering future maintenance obligations and costs imposed on city staff.

Thank You

Enclosures:
Memorandum of Understanding Document
Exhibit A

CITY CONTRACT NO. _____

**MEMORANDUM OF UNDERSTANDING
BETWEEN THE CITY OF CHEYENNE AND
THE SADDLE RIDGE HOMEOWNER'S ASSOCIATION C/O WJE LLC**

1. Parties. This Memorandum of Understanding ("MOU") is made and entered into by and between WJE LLC., 506 Shoshoni Street, Cheyenne, Wyoming 82009 ("Developer"), the City of Cheyenne, a municipality organized and existing under the laws of the State of Wyoming ("City"), 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, and The Saddle Ridge Master Homeowner's Association, Inc. ("HOA") c/o WJE LLC, 506 Shoshoni Street, Cheyenne, Wyoming 82009 (collectively referred to as "Parties").
2. Purpose. The purpose of this MOU is for the city to accept ownership of Lot 11, Block 3, Saddle Ridge 16th Filing and Tracts 1, 2 and 3 of Saddle Ridge 18th Filing and to outline the design, construction and maintenance responsibilities for these areas. It is mutually understood that all proposed amenities to be built upon these parcels shall be reviewed and approved by the City and will be designed and constructed at the expense of the Developer and shall be designed and constructed to City and Department of Justice Americans with Disabilities Act of 1990 ("ADA") standards and other specifications as found in the City of Cheyenne and Board of Public Utilities' Construction Specifications and Standard Drawings, most recent version. This MOU shall remain in full force and effect from the effective date of this MOU until terminated in accordance with the provisions of Section 11 of this MOU.
3. Mutual Understanding for Future Development: It is understood that this agreement for acceptance of land is made based on historical agreements made for previous filings of the Saddle Ridge Development. It is the belief of city staff that these and previous dedications/donations represent a significant future maintenance commitment by the city and do not serve the whole of its citizens but are more directly related to neighborhood amenities that benefit the purchasers of homes in the Saddle Ridge development area. As the City grows, the Parks Department must make hard choices on the types of properties they are able to maintain with limited staff and financial resources. For all future dedication/donations of land the following minimum requirements will apply.
 - i. The Greater Cheyenne Greenway is a regional transportation alternative and recreational system that is intended to safely connect neighborhoods to each other and to businesses, schools, and parks. The city will limit the quantity of public Greenway trail allowed in a single development to meet this intention.
 - ii. The city will not accept donation/dedication of detention ponds and will require that easements to be placed on these private facilities.
 - iii. Proposed Park lands will be accepted based on the requirements in the most

recent edition of the Parks and Recreation Master Plan and Cheyenne Unified Development Code (UDC). Minimum requirements include, but are not limited to, a minimum of 50% of the park site being usable for typical recreation facilities, such sport fields and courts, playgrounds, and other facilities and maintainable with an average slope of 1-5%. All proposed park amenities must accommodate persons with disabilities.

4. Responsibilities of the Developer. The Developer shall be responsible for:

- i. Construction of Greenway. Construction of Greenway as described in Exhibit A, shall be completed by Developer by the end of year 2024.
- ii. Donation of Land. The Developer shall convey by warranty deed, Lot 11, Block 3, Saddle Ridge 16th Filing and Tracts 1,2 and 3 of Saddle Ridge 18th Filing to the City of Cheyenne. The Developer shall pay all property taxes due and owing on the date of closing.
- iii. Construction of Greenway. The Developer shall design and construct a 10-foot width Greenway trail per Exhibit A to include all ramps, crossing markings, warning signs and drainage amenities as needed. The Greenway will be attached to the curb and within the right-of-way along the north side of Wilderness Trail from Farthing Road to Dixon Trail, along the west side of Dixon Drive (adjacent to School District property) to Three Hearts Trail then cross over to the east side of Dixon Trail (8-foot segment) to East Pershing Boulevard. A 10-foot trail will then be designed and constructed, to include any access and drainage appurtenances as necessary, heading east within Lot 11, Blk 3, Saddle Ridge 16th Filing and finally connect to existing Greenway trail at the intersection of Christensen Road and East Pershing Boulevard. Construction of Greenway as described in Exhibit A, shall be completed by Developer by the end of year 2024.
- iv. Construction of Sidewalks. The Developer shall construct all sidewalks adjacent to all parcels conveyed to the City not having Greenway parallel to adjacent right-of-way.
- v. Fabrication, Installation and Maintenance of Signage. Prior to dedication/donation of the afore mentioned Lots and Tracts, the Developer shall install permanent signage along all rights-of-way abutting future city property clearly describing that all maintenance of these properties is the responsibility of the Saddle Ridge Master Homeowners Association. The city shall review content of the signs prior to installation.

- vi. Appraisals. The Developer shall provide the City appraisals for all donated parcels of land under this agreement. Appraisals shall be completed no more than twenty-four (24) months prior to parcel conveyance.
- 5. Responsibilities of the City. The City shall be responsible for maintenance as follows:
 - i. Reimbursement for Greenway Design and Construction. Upon completion and City acceptance of the Greenway section outlined on Exhibit A, the City shall reimburse the Developer via Community Facility Fees, an amount not to exceed seventy-five thousand six hundred dollars (\$75,600) which is equivalent to the total lots located in both the Saddle Ridge 16th and 18th Filings combined. 189 lots at \$400.00 per dwelling unit.
 - ii. Ten (10) foot concrete trail care (Greater Cheyenne Greenway standard). The City shall assume maintenance responsibilities including, without limitation, trail repair, trail replacement, and snow removal in accordance with City snow removal policies, for all portions of the ten (10) foot concrete trail (Greater Cheyenne Greenway) upon acceptance by the City. The repair, replacement, and other maintenance of the trail shall conform to industry standards, practices, and procedures.
 - iii. Maintenance. The City shall mow approximately six (6) feet on either side of the Greenway path in areas landscaped with dryland grasses. Any deciduous trees should be placed a minimum of six (6) feet from the edge of path and any evergreen trees should be placed a minimum of fifteen (15) feet from edge of path. All landscaped areas beyond the six (6) foot mowing depth shall be the responsibility of an entity other than the City.
- 6. Responsibilities of HOA. The HOA shall be responsible for maintenance of all donated lands and any approved recreational amenities in perpetuity. The City, on its own accord, shall not construct any recreational amenities on the Tracts and Lots named in this MOU without the written approval of the HOA. The donated lands shall remain in a natural, native landscaped state. Maintenance shall include but is not limited to trash pickup, mowing, maintenance and repair of all detention facilities, and noxious weed control.
- 7. Improvements within City owned Tracts, Lots and Public Right-of-Way, Review, and Approval. All improvements, including signs, trails, picnic areas, landscaping and other amenities provided within public rights-of-way and City-owned tracts and lots associated with this MOU shall be reviewed and approved subject to the Site Plan and Engineering Plan Review processes of the City.

8. Public Sidewalks, Maintenance. Nothing in this paragraph shall be construed as relieving the HOA, or its successors or assigns, from complying with sidewalk maintenance obligations imposed on adjacent landowners as provided by the Cheyenne City Codes. All sidewalks located on City-owned tracts or within public rights-of-way are the responsibility of the HOA or the lot owner, to include snow removal. All sidewalks shall be constructed in accordance with City construction standards.
9. General Liability Insurance. The HOA must secure and maintain General Liability Insurance. This insurance must provide coverage for all claims that may arise from users of the property. Such insurance must include the City as an additional insured and shall remain in effect in perpetuity. The HOA shall file a Certificate of Insurance with the City verifying each type of insurance coverage listed below. The Certificate of Insurance shall be submitted to and approved by the City of Cheyenne prior to commencement of performance under this MOU.

i. Insurance Coverage:

<u>Type of Coverage</u>	<u>Minimum Policy Requirements</u>
Operations: Explosion, Collapse and Underground	\$2,000,000 Aggregate
Business Automobile Liability	\$1,000,000 (Combined Single)
Workers' Compensation OR Employer's Liability	Statutory \$500,000 Each Accident \$500,000 Each Disease-Policy \$500,000 Disease/Each Employee

- ii. It is understood and agreed that these policies are primary and not contributory. All policies required under this MOU shall be in effect for the duration of this MOU. The HOA shall immediately notify in writing the City Risk Manager, City Clerk, and City Attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this MOU.
- iii. The City of Cheyenne shall be named as an additional insured on the insurance policies to be provided by the HOA pursuant to this MOU, except workers' compensation, and the HOA shall provide copies of endorsements providing this coverage.
- iv. The City has the right to reject a certificate of insurance if any insurance

company, selected by the HOA to provide the insurance coverages required by this MOU, is widely regarded in the insurance industry as financially unstable. Any insurance company providing coverage under this MOU shall have a minimum A.M. Best rating of A - (excellent).

- v. All subcontractors engaged by the HOA shall provide insurance coverages at least equivalent to those required of the HOA under this MOU. The City has the right to review the insurance certificates of any and all subcontractors engaged by the HOA to perform its responsibilities under this MOU.
10. Indemnity. In entering into this MOU, the HOA agrees to defend, hold harmless, and indemnify the City of Cheyenne, its officials, employees, agents and authorized volunteers against any and all claims and costs, including attorney's fees, arising during or resulting from the HOA's performance of its responsibilities under this MOU, and the HOA shall carry insurance as set forth in this MOU. The HOA acknowledges its understanding of this paragraph and realizes that it may incur financial obligations to the City.
11. Default; Remedies.
- i. Default. Each and every term and condition herein shall be deemed a material element of this MOU. In the event either party shall fail or refuse to perform according to the terms of this MOU, such party may be declared in default.
 - ii. Remedies. In the event a party declares the other party in default hereto, said party declaring default shall notify the defaulting party in writing and such defaulting party shall be allowed a period of fifteen (15) days to cure said default. In the event that the default remains uncorrected, the party not in default may elect to: (a) terminate this MOU and seek damages; (b) treat the MOU as continuing and require specific performance; or (c) avail itself of any other remedy at law or equity. In addition, if the HOA fails to perform in accordance with this MOU, the City may elect to make good such deficiencies and seek reimbursement of its costs and expenses from the HOA.
12. General Provisions.
- i. Amendments. This MOU may not be modified, revised, or amended except pursuant to one or more written instruments duly executed by the Parties hereto.
 - ii. Applicable Law. The construction, interpretation, and enforcement of this MOU shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this MOU and over

the Parties. The venue shall be the First Judicial District, Laramie County, Wyoming.

- iii. Assignments. This MOU shall be binding upon and inure to the benefit of the Parties hereto and their respective heirs, successors, transferees, and permitted assignees. Neither Party shall assign this MOU without the express written consent of the other Party.
- iv. Entirety of Agreement. This MOU, consisting of eight (8) pages, and Exhibit A, consisting of one (1) page, represents the entire and integrated agreement between the Parties and supersedes all prior negotiations, representations, and agreements, whether written or oral.
- v. Force Majeure. Neither Party shall be liable to perform under the MOU if such failure arises out of causes beyond control and without the fault or negligence of said Party. Such causes may include, but are not limited to, acts of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather.
- vi. Notices. All notices arising out of or from the provisions of this MOU shall be in writing and shall be served upon the other Party by regular mail, by personal delivery, or by e-mail transmission to the following addresses:

HOA:
Saddle Ridge Master
Homeowners Association, Inc.
c/o WJE, LLC
506 Shoshoni St.
Cheyenne Wyoming 82009
E-mail: john@edwardsdevelopment.com

City of Cheyenne:
City of Cheyenne
Attn: City Clerk's Office
2101 O'Neil Avenue
Cheyenne, Wyoming 82001
E-mail: kjones@cheyennecity.org

Developer:
WJE, LLC
506 Shoshoni St.
Cheyenne, WY 82009
E-mail: john@edwardsdevelopment.com

Either party may change the place, method, and person to receive notice by written notification to the other party or by e-mail to the address above.

- vii. Governmental Immunity. The City does not waive its governmental immunity by entering into this MOU and the City fully retains all immunities and defenses

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provided by law, Wyo. Stat. § 1-39-101, *et seq.*, with respect to any claims, demands, causes of action, injuries or damages, whatsoever, arising in any way from this MOU.

- viii. Third Party Beneficiary Rights. The Parties do not intend to create in any other individual or entity, the status of third-party beneficiary and this MOU shall not be construed so as to create such status. The rights, duties, and obligations contained in this MOU shall operate only between the Parties to this MOU and shall inure solely to the benefit of the Parties to this MOU. The provisions of this MOU are intended only to assist the Parties in determining and performing their obligations under this MOU. The Parties to this MOU intend and expressly agree that only Parties signatory to this MOU shall have any legal or equitable right to seek to enforce this MOU, to seek any remedy arising out of a Party's performance or failure to perform any term or condition of this MOU, or to bring an action for the breach of this MOU.
 - ix. As to any duty or responsibility assigned herein to HOA, those parties, by agreement between them, may assign the duty or responsibility to one or the other or may retain joint responsibility.
13. Signatures. In witness whereof, the Parties to this MOU, through their duly authorized representatives, have executed this MOU on the days and dates set out below and certify that they have read, understood, and agreed to the terms and conditions of this MOU as set forth herein.

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HOA: Saddle Ridge Homeowner's Association

Date

John Edwards, Member

Developer: WJE, LLC

Date

John Edwards, Member

City: City of Cheyenne

Date

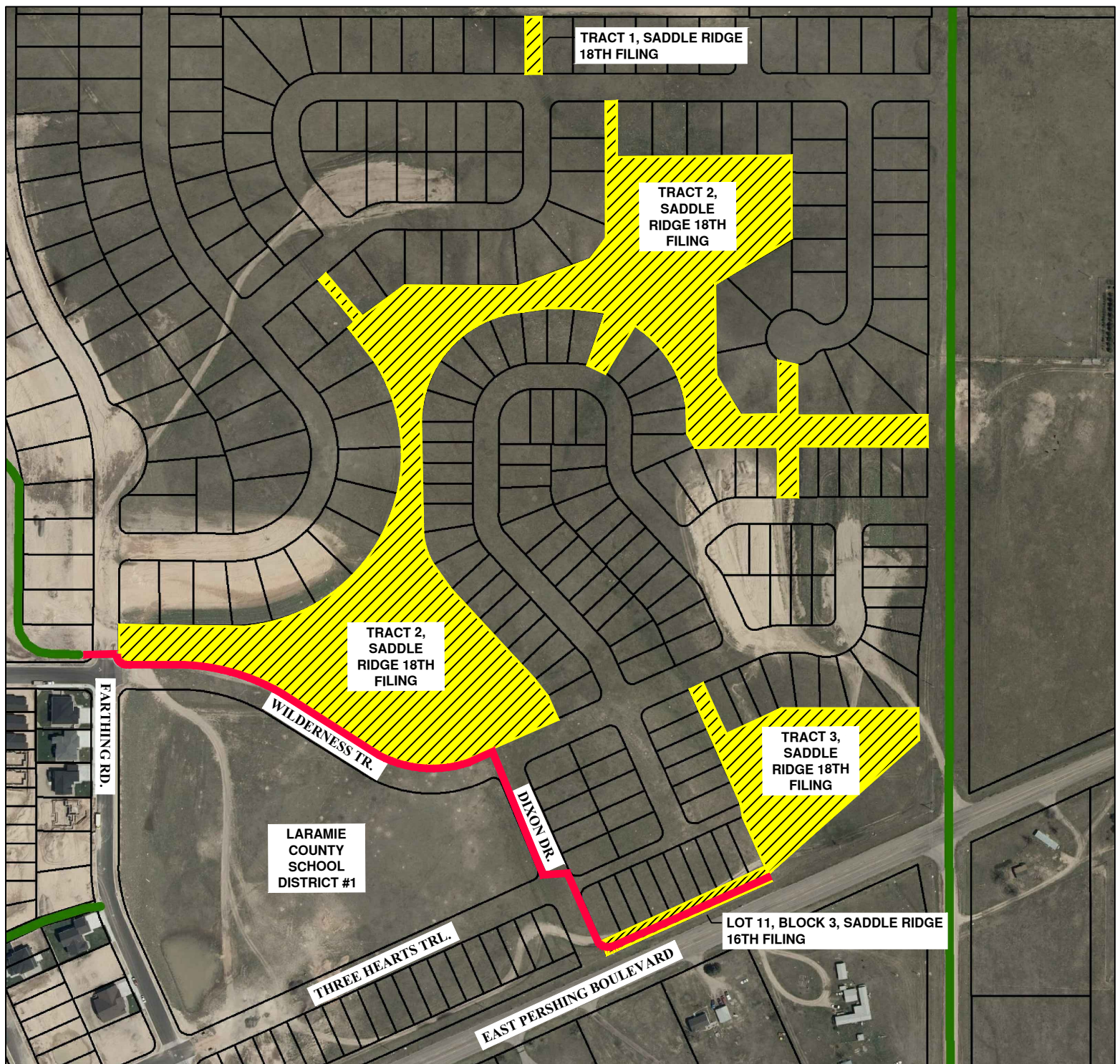
Patrick Collins, Mayor

Seal:

Attest:

Kristina F. Jones, City Clerk

**Memorandum of Understanding Between the City of Cheyenne and The Saddle Ridge Homeowner's
Association C/O WJE, LLC**



SADDLE RIDGE MOU
EXHIBIT A
CONTRACT # _____

LEGEND

- Parcels to be donated to City 
- Existing Greenway 
- Greenway to be designed and constructed by Developer 

